

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

MARILICE SANTOS DA BIENVENU,	)	Case Number: FDI-21-794491
Petitioner	)	Hearing Date: July 14, 2026
VS.	)	Hearing Time: 9:00 AM
ALEXANDRE PHILLIPE PAUL BIENVENU,	)	Department: 404
Respondent	)	Presiding: AI MORI

OTHER REVIEW HEARING

TENTATIVE RULING

The parties are ordered to appear in-person or by Zoom. If a party chooses to appear by Zoom, that party must abide by the Notice and Instructions for Remote Appearance in San Francisco Family Court set forth above.

At the hearing, the Court intends to adopt the following findings and orders, absent good cause shown.

A. Procedural History

- 1) The parties are Petitioner Marilice Santos de Bienvenu (Mother) and Respondent Alexandre Phillipe Paul Bienvenu (Father). Mother lives in Brazil. Father lives in France (but previously lived in San Francisco). The parties have one minor child, Kuane (DOB: 12/2/2015, age 9). Both parties are currently self-represented.
- 2) On 2/17/2021, Mother filed a Petition for Dissolution.
- 3) On 9/9/2024, Father filed a Response and Request for Dissolution.
- 4) The Court has made the following orders in this matter to date:

- a. Per the Findings and Order After Hearing filed 10/20/2024, the Court set aside Father's default previously entered on 12/16/2021 as well as a True Default Judgment entered on 2/6/2023.
 - b. Per the Findings and Order After Hearing filed 2/11/2025, the Court ordered Father to pay Mother \$450 per month in child support and \$300 per month in temporary spousal support.
- 5) On 11/18/2025, Father filed Request for Order asking this Court to relinquish jurisdiction over custody, visitation, spousal support, child support, and property division "in favor of the Brazilian courts as the appropriate forum," vacate as void all orders "arising from improper service and lack of jurisdiction, including the February 11, 2025 support order," and dismiss all proceedings in California to prevent duplicative litigation and protect the child's welfare.
- 6) Per the Proof of Service filed 3/13/2026, Father's Request for Order, blank Responsive Declaration, and Tentative Ruling Instructions were mailed to Mother at the Oregon address the Court has on file for Mother (Mother has never filed a Notice of Change of Address to date) as well as an address in Brazil.
- 7) Mother did not file a Responsive Declaration.
- 8) At the prior 4/2/2026 hearing, Father appeared but Mother did not. The Court adopted its Tentative Ruling without objection and made the following findings and orders the following:
 - a. The Court noted that in Mother's Petition for Dissolution and Father's Response and Request for Dissolution, both parties stated the minor child has been living in Brazil since 2016. This Court found that the state of California does not have jurisdiction to make custody and visitation orders under the Uniform Child Custody Jurisdiction and Enforcement Act as California is not the child's home state. This Court also noted it has made no custody and visitation orders to date.
 - b. The Court found that both parties submitted to the Court's jurisdiction over child and spousal support by filing a Petition, Response, Request for Order seeking child and spousal support, and Responsive Declaration opposing child and spousal support in this Court. The Court did not find that the current child and spousal support orders are void or

1 invalid and instead found they shall remain in full force and effect, subject to registration,
2 enforcement, and modification in Brazil.

3 c. The Court granted Father's unopposed request and found that Brazil is the more
4 convenient forum to make orders regarding custody, visitation, and property division, and
5 to enforce and modify the current child and spousal support orders under Code of Civil
6 Procedure section 410.30.

7 d. The Court ordered Father to immediately open a family law case in the appropriate venue
8 in Brazil where Mother resides and to register the current child and spousal support
9 orders in that Brazilian case.

10 e. The Court set a review hearing for Father for 7/14/2026 to demonstrate full compliance
11 with these orders, and the Court noted it would consider staying or dismissing this case if
12 the Court finds Father in compliance with these orders.

13 f. The Court ordered Father to file and serve a declaration which includes documentary
14 evidence showing compliance with the Court's orders at least 20 calendar days prior to
15 the next hearing date.

16 g. The Court ordered Mother to file and serve a declaration if she has any relevant updates
17 for the Court at least 10 calendar days prior to the next hearing date.

18 9) On 6/24/2026, Father filed a declaration and an amended declaration wherein he attaches a
19 declaration by his Brazilian attorney Flavia Marinho do Rosario who states that a Petition has
20 been prepared for filing but has not yet been filed due to temporary unavailability of the
21 electronic filing system in Brazil.

22 10) Per the Proof of Service filed 7/6/2026, Father's declaration was mailed to the Oregon address the
23 Court has on file for Mother on 6/24/2026.

24 11) On 7/9/2026, Father filed a declaration in which he states that a Brazilian action was filed on
25 6/29/2026, Case No. 8021817-59.2026.8.05.0150. Attached to Father's declaration is a
26 declaration by Father's Brazilian attorney Flavia Marinho do Rosario who states: that the initial
27 petition in the Brazilian action includes a request to "assess" current alimony orders including
28 Father's child support obligation of \$450 per month and temporary spousal support of \$300 per
29 month. Father's declaration also includes as an attachment documents which appear to show that

1 an action was commenced in Brazil on 6/29/2026. Ms. Marinho do Rario's declaration as well as
2 various attachments are attached Portuguese with an English translation. There is also a
3 declaration by Liam Gallagher who attests that he performed the translations and the he is a
4 translator certified by the American Translators Association for Portuguese into English.

5 12) Per the Proof of Service filed 7/9/2026, Father's declaration was mailed to the Oregon address the
6 Court has on file for Mother on 6/24/2026

7 **B. Findings and Order**

- 8 1) The Court finds that Father has complied with the Court's orders made at the 4/2/2026 hearing
9 requiring him to open a family law case in Brazil. The Court also finds that Father has notified
10 the Brazilian court about the child and spousal support orders previously made by this Court.
- 11 2) The Court finds good cause to stay this action under Code of Civil Procedure section 410.30. The
12 Court defers to the jurisdiction of Brazil to make orders regarding custody, visitation, property
13 division, and to modify or enforce the child support and temporary spousal support orders
14 previously made by this Court.
- 15 3) The Court will only lift the stay in this action upon good cause shown.
- 16 4) The Court will prepare the Findings and Order After Hearing.
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